

No. 23-13396

**IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

AMERICAN SECURITIES ASSOCIATION, et al.,
Petitioners,

v.

U.S. SECURITIES AND EXCHANGE COMMISSION,
Respondent.

On Petition for Review of an Order of the United States Securities and Exchange
Commission SEC Release No. 34-98290

Motion to Withdraw Appearance of Nicholas J. Bronni

TIM GRIFFIN
Arkansas Attorney General

Nicholas J. Bronni
Solicitor General
Office of the Arkansas Attorney General
323 Center Street, Suite 200
Little Rock, AR 72201
(501) 682-6302
nicholas.bronni@arkansasag.gov

**CERTIFICATE OF INTERESTED PERSONS
AND CORPORATE DISCLOSURE STATEMENT**

Undersigned counsel represents Amici Curiae, State of Arkansas et al. Pursuant to Eleventh Circuit Rule 26.1-1 through -3 and Federal Rule of Appellate Procedure 26.1, undersigned counsel hereby certifies that, to the best of his knowledge, the following persons and entities have an interest in this case:

1. Alford, Rep. Mark, *Amicus Curiae*;
2. Alternative Investment Management Association, *Amicus Curiae*;
3. Altman, Jennifer G., *Counsel of Record for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
4. American Free Enterprise Chamber of Commerce, *Amicus Curiae*;
5. **American Securities Association, *Petitioner***;
6. ArentFox Schiff LLP, *Counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
7. Ashbrook Byrne Kresge LLC, *Counsel for Amici Curiae S.P. Kothari and James Overdahl*;
8. Bacon, Rep. Don, *Amicus Curiae*;
9. Bailey, Andrew, *Counsel for Amicus Curiae State of Missouri*;
10. Ballard Spahr LLP, *Counsel for Intervenors Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
11. Baltz, Brian J., *Counsel for Amicus Curiae Futures Industry Association*;
12. Barbero, Megan, *Counsel for Respondent*;

13. Barr, William P., *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
14. Bash, John F., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
15. Berman, Ari M., *Counsel for Intervenor New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
16. Berry, Jonathan, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
17. Bird, Brenna, *Counsel for Amicus Curiae State of Iowa*;
18. Blask, Ariel, *Counsel for Amicus Curiae Futures Industry Association*;
19. Boden, Anastasia, *Counsel for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
20. Boozman, Sen. John, *Amicus Curiae*;
21. Borse Dubai Limited, *Owner of 10% or Greater Interest in Nasdaq, Inc.*;
22. BOX Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
23. Boyden Gray PLLC, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
24. Boyle, Gregory M., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
25. Braun, Sen. Mike, *Amicus Curiae*;
26. **Bronni, Nicholas J., Counsel of Record for Amici Curiae 23 States**;
27. Carr, Chris, *Counsel for Amicus Curiae State of Georgia*;
28. Cato Institute, *Amicus Curiae and Counsel for Amicus Curiae Investor Choice Advocates Network*;

29. Cboe BYX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
30. Cboe BZX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
31. Cboe C2 Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
32. Cboe EDGA Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
33. Cboe EDGX Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
34. Cboe Exchange, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
35. Cboe Global Markets, Inc. (BATS: CBOE), *Indirect Owner of 10% or Greater Interest in Intervenor Consolidated Audit Trail, LLC, and Direct or Indirect Parent Company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
36. Chenoweth, Mark S., *Counsel for Amicus Curiae New Civil Liberties Alliance*;
37. Citadel Securities GP LLC, *Parent Company of Petitioner Citadel Securities LLC*;
38. Citadel Securities LLC, *Petitioner*;
39. Coleman, Russell, *Counsel for Amicus Curiae Commonwealth of Kentucky*;
40. Collins, Rep. Mike, *Amicus Curiae*;
41. Committee on Capital Markets Regulation, *Amicus Curiae*;
42. Commonwealth of Kentucky, *Amicus Curiae*;
43. Commonwealth of Virginia, *Amicus Curiae*;

44. Competitive Enterprise Institute, *Amicus Curiae*;
45. Conley, Michael A., *Counsel for Respondent*;
46. Connolly, J. Michael, *Counsel of Record for Petitioner American Securities Association*;
47. Consolidated Audit Trail, LLC, *Intervenor*;
48. Consovoy McCarthy PLLC, *Counsel for Petitioner American Securities Association*;
49. Cotton, Sen. Tom, *Amicus Curiae*;
50. Cramer, Sen. Kevin, *Amicus Curiae*;
51. Daines, Sen. Steve, *Amicus Curiae*;
52. Deutsch, Elizabeth B., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
53. Financial Industry Regulatory Authority, Inc., *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
54. Fitch, Lynn, *Counsel for Amicus Curiae State of Mississippi*;
55. Fitzgerald, Rep. Scott, *Amicus Curiae*;
56. Flowers, Benjamin M., *Counsel of Record for Amici Curiae S.P. Kothari and James Overdahl*;
57. Formella, John M., *Counsel for Amicus Curiae State of New Hampshire*;
58. Francisco, Noel J., *Counsel of Record for Petitioner Citadel Securities LLC*;
59. Futures Industry Association, *Amicus Curiae*;
60. Gershengorn, Ian Heath, *Counsel of Record for Intervenor Consolidated Audit Trail, LLC*;
61. Greenberg, Dan, *Counsel for Amicus Curiae Competitive Enterprise*

Institute;

62. Greenwalt, Paul E. III, *Counsel of Record for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.;*
63. Griffin, Tim, *Counsel for Amicus Curiae State of Arkansas;*
64. Hagerty, Sen. Bill, *Amicus Curiae;*
65. Hardin, Tracey A., *Counsel for Respondent;*
66. Hilgers, Michael T., *Counsel for Amicus Curiae State of Nebraska;*
67. Hill, Rep. French, *Amicus Curiae;*
68. Hopen, David A., *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;*
69. Hoyt, Joshua T., *Counsel for Petitioner Citadel Securities LLC;*
70. Intercontinental Exchange, Inc. (NYSE: ICE), *Indirect Owner of 10% or Greater Interest in Intervenor Consolidated Audit Trail, LLC, and Indirect Parent Company of Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.;*
71. International Securities Exchange Holdings, Inc., *Parent Company of Intervenors Nasdaq GEMX, LLC, Nasdaq ISE, LLC, and Nasdaq MRX, LLC;*
72. Investment Company Institute, *Amicus Curiae;*
73. Investor AB (Nasdaq Stockholm: INVE B), *Owner of 10% or Greater Interest in Nasdaq, Inc.;*
74. Investor Choice Advocates Network, *Amicus Curiae;*

75. Investors Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
76. Jackley, Marty, *Counsel for Amicus Curiae State of South Dakota*;
77. Jacobs, Dylan L., *Counsel for Amicus Curiae State of Arkansas*;
78. Jenner & Block LLP, *Counsel for Intervenor Consolidated Audit Trail, LLC*;
79. Jones Day, *Counsel for Petitioner Citadel Securities LLC*;
80. Kastenbergh, Stephen J., *Counsel of Record for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
81. Katsiff, Timothy D., *Counsel for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
82. Kennedy, Sen. John, *Amicus Curiae*;
83. Kennedy, Jordan A., *Counsel for Respondent*;
84. Knudsen, Austin, *Counsel for Amicus Curiae State of Montana*;
85. Kobach, Kris W., *Counsel for Amicus Curiae State of Kansas*;
86. Kothari, S.P., *Amicus Curiae*;
87. Kumar, Neal, *Counsel of Record for Amicus Curiae Futures Industry Association*;
88. Labrador, Raúl R., *Counsel for Amicus Curiae State of Idaho*;
89. Lantieri, Paul III, *Counsel for Intervenor Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
90. Lipshutz, Brian M., *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association,*

Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;

91. Little, Margaret A., *Counsel for Amicus Curiae New Civil Liberties Alliance;*
92. Long-Term Stock Exchange, Inc., *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
93. Loudermilk, Rep. Barry, *Amicus Curiae;*
94. Lucas, Brinton, *Counsel for Petitioner Citadel Securities LLC;*
95. MacLean, Matthew J., *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.;*
96. Managed Funds Association, *Amicus Curiae;*
97. Marks, William T., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.;*
98. Marshall, Jonathan J., *Counsel for Intervenor Consolidated Audit Trail, LLC;*
99. Marshall, Steve, *Counsel for Amicus Curiae State of Alabama;*
100. Matro, Daniel E., *Counsel of Record for Respondent U.S. Securities and Exchange Commission;*
101. McCotter, R. Trent, *Counsel of Record for Amicus Curiae American Free Enterprise Chamber of Commerce;*
102. MEMX LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
103. Miami International Securities Exchange LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*
104. MIAX Emerald, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC;*

105. MIAX PEARL, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
106. MIAX Sapphire, LLC, *Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
107. Michael, Christopher G., *Counsel of Record for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
108. Miyares, Jason, *Counsel for Amicus Curiae Commonwealth of Virginia*;
109. Modern Markets Initiative, Inc., *Sponsor of Funding for Brief of Amici Curiae S.P. Kothari and James Overdahl*;
110. Molzberger, Michael K., *Counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe C2 Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., and Cboe Exchange, Inc.*;
111. Montgomery, Sophia W., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
112. Moody, Ashley, *Counsel for Amicus Curiae State of Florida*;
113. Mooney, Rep. Alex X., *Amicus Curiae*;
114. Moran, Sen. Jerry, *Amicus Curiae*;
115. Morris, Andrew J., *Counsel of Record for Amicus Curiae New Civil Liberties Alliance*;
116. Morrissey, Patrick, *Counsel for Amicus Curiae State of West Virginia*;
117. Murrill, Liz, *Counsel for Amicus Curiae State of Louisiana*;
118. Nabors, David A., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
119. Nasdaq BX, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
120. Nasdaq GEMX, LLC, *Intervenor and and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;

121. Nasdaq, Inc. (Nasdaq: NDAQ), *Parent Company of Intervenor Nasdaq BX, Inc., Nasdaq PHLX LLC, and The Nasdaq Stock Market LLC*;
122. Nasdaq ISE, LLC, *Intervenor and Plan Participant of Intervenor Consol- idated Audit Trail, LLC*;
123. Nasdaq MRX, LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
124. Nasdaq PHLX LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
125. Nasdaq Stock Market LLC, The, *Intervenor and Plan Participant of Inter- venor Consolidated Audit Trail, LLC*;
126. New Civil Liberties Alliance, *Amicus Curiae*;
127. New York Stock Exchange LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
128. Norman, Rep. Ralph, *Amicus Curiae*;
129. NYSE American LLC, *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
130. NYSE Arca, Inc., *Intervenor and Plan Participant of Intervenor Consoli- dated Audit Trail, LLC*;
131. NYSE Chicago, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
132. NYSE National, Inc., *Intervenor and Plan Participant of Intervenor Consolidated Audit Trail, LLC*;
133. Oliwenstein, David, *Counsel for Intervenor New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
134. Orr, Caleb, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
135. Overdahl, James, *Amicus Curiae*;

136. Paul, Weiss, Rifkind, Wharton & Garrison LLP, *Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.*;
137. Paxton, Ken, *Counsel for Amicus Curiae State of Texas*;
138. Phillips, David, *Counsel for Petitioner Citadel Securities LLC*;
139. Pillsbury Winthrop Shaw Pittman LLP, *Counsel for Intervenors New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE Chicago, Inc., and NYSE National, Inc.*;
140. Quinn Emanuel Urquhart & Sullivan, LLP, *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
141. Rabbitt, Brian C., *Counsel for Petitioner Citadel Securities LLC*;
142. Reisner, Lorin L., *Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.*;
143. Reyes, Sean, *Counsel for Amicus Curiae State of Utah*;
144. Ricketts, Sen. Pete, *Amicus Curiae*;
145. Rokita, Theodore E., *Counsel for Amicus Curiae State of Indiana*;
146. Rose, Rep. John, *Amicus Curiae*;
147. Roth, Yaakov M., *Counsel for Petitioner Citadel Securities LLC*;
148. Schulp, Jennifer, *Counsel for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
149. Schwartz, Yishai, *Former Counsel for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu*

Financial, Inc.;

150. Scott, Sen. Tim, *Amicus Curiae*;
151. Securities Industry and Financial Markets Association, *Amicus Curiae*;
152. Self, Rep. Keith, *Amicus Curiae*;
153. Shanmugam, Kannon K., *Counsel of Record for Amici Curiae Alternative Investment Management Association, Committee on Capital Markets Regulation, Investment Company Institute, Managed Funds Association, Securities Industry and Financial Markets Association, and Virtu Financial, Inc.;*
154. Skorup, Brent, *Counsel of Record for Amici Curiae Cato Institute and Investor Choice Advocates Network*;
155. Sobel, Zachary J., *Counsel for Amici Curiae Senator Tom Cotton and 21 Other Members of Congress*;
156. State of Alabama, *Amicus Curiae*;
157. State of Arkansas, *Amicus Curiae*;
158. State of Florida, *Amicus Curiae*;
159. State of Georgia, *Amicus Curiae*;
160. State of Idaho, *Amicus Curiae*;
161. State of Indiana, *Amicus Curiae*;
162. State of Iowa, *Amicus Curiae*;
163. State of Kansas, *Amicus Curiae*;
164. State of Louisiana, *Amicus Curiae*;
165. State of Mississippi, *Amicus Curiae*;
166. State of Missouri, *Amicus Curiae*;

167. State of Montana, *Amicus Curiae*;
168. State of Nebraska, *Amicus Curiae*;
169. State of New Hampshire, *Amicus Curiae*;
170. State of North Dakota, *Amicus Curiae*;
171. State of Ohio, *Amicus Curiae*;
172. State of South Carolina, *Amicus Curiae*;
173. State of South Dakota, *Amicus Curiae*;
174. State of Texas, *Amicus Curiae*;
175. State of Utah, *Amicus Curiae*;
176. State of West Virginia, *Amicus Curiae*;
177. Stern, Eric E., *Counsel for Amici Curiae Securities Industry and Financial Markets Association and Virtu Financial, Inc.*;
178. Thoma Bravo LP, *Owner of 10% or Greater Interest in Nasdaq, Inc.*;
179. Torridon Law PLLC, *Counsel for Amicus Curiae American Free Enterprise Chamber of Commerce*;
180. Unikowsky, Adam G., *Counsel for Intervenor Consolidated Audit Trail, LLC*;
181. **U.S. Securities and Exchange Commission, Respondent**;
182. Vanguard Group, Inc., *The, Owner of 10% or Greater Interest in Cboe Global Markets, Inc.*;
183. Virtu Financial, Inc., *Amicus Curiae*;
184. Watkins, Devin, *Counsel of Record for Amicus Curiae Competitive Enterprise Institute*;
185. Weber, Rep. Randy, *Amicus Curiae*;

186. Willkie Farr & Gallagher LLP, *Counsel for Amicus Curiae Futures Indus- try Association*;
187. Wilson, Alan, *Counsel for Amicus Curiae State of South Carolina*;
188. Womack, Rep. Steve, *Amicus Curiae*;
189. Wrigley, Drew H., *Counsel for Amicus Curiae State of North Dakota*;
190. Yost, Dave, *Counsel for Amicus Curiae State of Ohio*.

Nicholas J. Bronni, counsel for Amici Curiae, State of Arkansas et al., respectfully moves to withdraw as an attorney of record in this matter. Mr. Bronni has left the employment of the Office of the Arkansas Attorney General to begin service as an Associate Justice of the Arkansas Supreme Court. Amici Curiae will continue to be represented by the other counsel of record from the Office of the Arkansas Attorney General.

Date: January 3, 2025

Respectfully Submitted,

TIM GRIFFIN
Arkansas Attorney General

Nicholas J. Bronni
Solicitor General
Office of the Arkansas Attorney General
323 Center Street, Suite 200
Little Rock, AR 72201
(501) 682-6302
nicholas.bronni@arkansasag.gov

CERTIFICATE OF SERVICE

I certify that on January 3, 2025, I electronically filed the foregoing with the Clerk of Court using the CM/ECF system, which shall send notification of such filing to any CM/ECF participants.

/s/ Nicholas J. Bronni
Nicholas J. Bronni

CERTIFICATE OF COMPLIANCE

I certify that this motion complies with the type-volume limitation of Fed. R. App. P. 27(d)(2)(A) because it contains 71 words, excluding the parts exempted by Fed. R. App. P. 32(f).

Pursuant to Fed. R. App. P. 27(d)(1)(E), I also certify that this motion complies with the requirements of Fed. R. App. P. 32(a)(5)-(6) because it has been prepared in a 14-point Times New Roman, a proportionally spaced typeface, using Microsoft Word.

/s/ Nicholas J. Bronni
Nicholas J. Bronni